

Court No. - 4

Case :- WRIT - C No. - 6747 of 2020

Petitioner :- Nisha Agarwal

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Avnish Kumar Srivastava

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Bala Krishna Narayana,J.

Hon'ble Ravi Nath Tilhari,J.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent nos. 1 and 4 and Shri Ajay Kumar, learned counsel has accepted notice on behalf of respondent nos. 2 and 3.

This writ petition has been filed by the petitioner with the following reliefs:-

"i. Issue a writ, order or direction in the nature of certiorari quashing the impugned electricity bills issued by the respondent authorities.

ii. Issue a writ, order or direction in the nature of mandamus commanding the respondent authorities to correct the electricity dues as well as meter of the petitioner."

Having gone through the averments made in the writ petition and the documents appended thereto, we find that the petitioner by means of this writ petition is challenging the correctness of his electricity bill dated 02.03.2019 and another bills.

We are of the opinion that for the redressal of his grievance the petitioner has got efficacious alternative remedy available under Clause 6.5 of the Electricity Supply Code 2005 which he has already availed by filing a representation before the respondent no. 3 on 15.06.2019 (annexure no. 7 to the writ petition) and without waiting for the respondent no. 3 to take any decision on his representation/objection filed by him under Clause 6.5 of the Electricity Supply Code 2005 the petitioner has rushed with this writ petition.

In view of the above, without expressing any opinion on merits, we disposed of this writ petition at the admission stage itself, without calling for any counter affidavit with a direction to the respondent no. 3 to decide the representation/objection dated 15.06.2019 filed before him challenging the correctness of the bill dated 02.03.2019 and another bills, copy whereof has been brought on record as Annexure no. 7 to the writ petition within

a period of four weeks from the date of filing of certified copy of this order before him.

Order Date :- 5.3.2020/sweta

(Ravi Nath Tilhari, J.) (Bala Krishna Narayana, J.)